

		the only evidence of bad faith adduced by Plaintiffs is Jobot’s delay in seeking relief—a delay that, contrary to Plaintiffs’ argument, is well-explained. Accordingly, the motion is granted.
3	Marquez vs. CSL Berkshire Operating LLC 2025-01518232	Plaintiff’s Motion to Dismiss Plaintiff Hermina R. Marquez’s motion to dismiss pursuant to CRC 3.770 is GRANTED. On July 23, 2026, Defendant CSL Berkshire Operating Company, LLC served a CCP § 998 offer on Plaintiff. Plaintiff accepted the offer on July 30. (Carlin Decl. (included in ROA 45) ¶ 2 & Ex. 1.) The parties agreed that Defendant will pay Plaintiff \$17,005 to settle her individual claims, plus attorney’s fees in an amount to be determined. (<i>Id.</i>, at ¶ 3.) In the meantime, the Ventura County Superior Court has preliminarily approved a class and PAGA settlement in <i>Orozco v. Clearwater Senior Living</i>, No. 202200568082CUOE. The <i>Orozco</i> case involves identical overlapping class and PAGA claims on behalf of similarly situated employees. (<i>Id.</i>, ¶ 6 & Ex. 2.) In this case, on the other hand, no class has been certified, no notice of this action has been sent to putative class members, and neither Plaintiff nor her counsel have contacted unrepresented employees regarding this case. (<i>Id.</i>, ¶ 5.) Plaintiff’s motion complies with the requirements of CRC 3.770. It is granted. Her individual claims are dismissed with prejudice, and her class and PAGA claims are dismissed without prejudice.
4	Viramontes vs. Prestige Design Center, Inc. 2021-01179611	Plaintiff’s Motion to Correct Clerical Error in Judgment Plaintiffs’ unopposed motion to correct clerical errors in the judgment is GRANTED. CCP § 473(d) provides: “The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” Plaintiffs contend the judgment in this class and PAGA action (ROA 434) contains two clerical errors. First, while the motion lists various Court-approved deductions from the agreed-upon gross settlement amount, the Gross Settlement Amount (GSA) itself is never listed. Second, because the GSA is never listed, the net settlement amount payable to class members cannot be calculated. It is undisputed that the GSA in this matter is \$527,752.93. (LaCour Decl. (ROA 464) Ex. C, at ¶ 23.) Taking the deductions from the GSA listed in the judgment, the NSA is \$243,720.93. “The difference between judicial and clerical error rests not upon the party committing the error, but rather on whether it was the deliberate result of judicial reasoning and determination. The distinction between clerical error and judicial error is whether the error was made in rendering the judgment, or in recording the judgment rendered.” (<i>Rochin v. Pat Johnson Manufacturing Co.</i> (1998) 67 Cal.App.4th 1228, 1238.) Here, the omission of the GSA and resulting NSA is an error in recording the judgment rendered. While the deductions taken from the GSA were subject to the Court’s discretion, the GSA was fixed by the parties’ settlement. There is no dispute that whatever amount is left over following the discretionary deductions would, <i>without</i> an exercise of the Court’s discretion, become the Net Settlement Amount (NSA). The Court will therefore correct the clerical error in the judgment by amending it to add the amounts of the GSA and NSA.
5	Diaz vs. Precision Waterjet Inc.	Plaintiff’s Motion for Final Approval

	2024-01421315	Plaintiff’s motion for final approval of the parties’ class action and PAGA settlement is GRANTED. The Court approves the following distributions: 1. Attorney’s fees in the amount of \$160,050, or 30% of the GSA. The Court finds this amount to be a reasonable result in light of the quality of the result obtained, the work performed by class counsel, a review of the billing records provided, and the estimated lodestar. In approving this amount and examining the billing records provided, the Court is not approving any particular hourly billing rates proposed by class counsel. 2. Litigation costs in the amount of \$20,215, the full amount sought. 3. Administration costs in the amount of \$8,500, per the administrator’s declaration. 4. An enhancement of \$5,000 to plaintiff. In making this award, the Court has considered only the factors set forth in <i>Golba v. Dick’s Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251 and <i>Clark v. Am. Residential Servs. LLC</i> (2009) 175 Cal.App.4th 785. 5. Payment to the LWDA of \$32,500, per the parties’ PAGA allocation. Pursuant to section 384(b) of the Code of Civil Procedure, Plaintiff shall submit to the Court a final report on or before March 30, 2027 setting forth the actual amounts paid to class members and other amounts disbursed pursuant to the settlement. Upon receiving the report, the Court will determine whether further reports and/or a hearing will be necessary. Please submit a revised proposed order for the Court’s signature that conforms to the foregoing.
6	PELORUS FUND REIT, LLC, a Delaware limited liability company vs. ARGENT INSTITUTIONAL TRUST COMPANY, as successor in interest to Acquiom Agency Services LLC, a Florida corporation 2026-01563653	Plaintiff’s Motion for Attorney Fees Pelorus Fund REIT, LLC’s motion for attorney’s fees is DENIED. The Court has not considered any of the parties’ citations to unpublished decisions of the California Superior Courts. (See <i>Santa Ana Hospital Medical Center v. Belshe</i> (1997) 56 Cal.App.4th 819, 831 (“a written trial court ruling has no precedential value”).) <u>GROUND FOR RULING</u> The CNG Defendants, joined by Argent, filed a special motion to strike Pelorus’s complaint under CCP § 425.16. The Court denied that motion, ruling that the CNG Defendants and Argent failed to meet their burden under step one of the anti-SLAPP analysis. (ROA 121.) Pelorus now seeks its attorney’s fees incurred in opposing the motion under CCP § 425.16(c)(1), which provides in relevant part: “If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney’s fees to a plaintiff prevailing on the motion, pursuant to [CCP] Section 128.5.” I. <u>Safe Harbor Compliance</u> “Section 425.16, subdivision (c)’s reference to section 128.5 means a court “‘must use the procedures and apply the substantive standards of section 128.5 in deciding whether to award attorney fees [to a prevailing plaintiff] under the anti-SLAPP statute.’” (Zarate v. McDaniel (2023) 97 Cal.App.5th 484, 488 (alteration in original).) “Relevant here, section 128.5, subdivision (f)(1)(B) is a safe harbor provision, which provides that where the challenged action—like a written motion—‘can be withdrawn or appropriately corrected,’ a motion for sanctions cannot be filed with the court unless the challenged action has not been withdrawn or corrected ‘21 days after service of the [sanctions] motion or [within] any other period as the court may